

BEFORE THE
FEDERAL MARITIME COMMISSION

DOCKET NO. 23-04

PORTS AMERICA CHESAPEAKE, LLC,

and

MARINE TERMINALS CORPORATION-EAST,

COMPLAINANTS,

v.

APS EAST COAST, INC.,

RESPONDENT.

**JOINT SUPPLEMENTAL STATUS REPORT
AND
JOINT REQUEST FOR MODIFICATION OF THE SCHEDULING ORDER**

Complainants, Ports America Chesapeake, LLC and Marine Terminals Corporation-East (collectively “Complainants”) and Respondent, APS East Coast, Inc. (“Respondent”) (collectively the “Parties”), by their respective undersigned counsel, have conferred and submit this joint status report and joint request for modification of the scheduling order dated September 15, 2023 (“Scheduling Order”).

The Parties have been working diligently on discovery in accordance with the Scheduling Order. Complainants issued combined requests for production of documents and interrogatories, and Respondent issued requests for production of documents, interrogatories and requests for

admission on each of the Complainants, and Complainants and Respondent exchanged written responses to the respective discovery requests and exchanged document productions. The Parties also negotiated and respectively signed a confidentiality stipulation regarding disclosure of confidential information and documents in this proceeding.

The Parties have reviewed the respective responses and document productions and have communicated, and met and conferred with respect to concerns with the respective responses and productions. The Parties have resolved some issues, and are continuing to engage in cooperative discussion of open issues. However, important issues remain, that if unresolved, may require the assistance of the Presiding Officer. In addition, Respondent advised on November 29, 2023 that Respondent's Chief Operating Officer, a key witness, had recently left Respondent's employment, which will likely require request and issuance of a subpoena, and Respondent is currently working to obtain the last known address and contact information for the witness. In light of the foregoing, and the intervening Thanksgiving holiday, the Parties have not been in a position to conduct depositions during the originally scheduled November 27 to December 8, 2023 fact deposition window.

This is the Parties first request for an extension. The Parties submit that the requested extension is reasonable under the circumstances and necessary to ensure the development of a full and complete record. The requested extension would still allow for completion of all discovery within 150 days of the service of Respondent's answer. The Parties submit that the proposed extension would not cause undue prejudice or delay and this joint request is being made in good faith. Accordingly, the Parties respectfully request a modification of the discovery schedule, and a commensurate extension of time of the remaining deadlines in the Scheduling Order, as follows:

Event	Current Deadline	Requested Deadline
Complete Fact Depositions	December 8, 2023	January 19, 2024
Complainant's brief, proposed findings of fact, and appendix.	January 8, 2024	February 19, 2024
Respondents' opposition brief, responses to proposed findings of fact, proposed findings of fact, and appendix.	February 7, 2024	March 19, 2024
Complainant's reply brief and responses to proposed findings of fact.	February 21, 2024	April 2, 2024

The requested extension of the fact deposition period is six calendar weeks; however, in light of the intervening Christmas and New Years holiday period, the practical period available for depositions is less than five weeks, and in addition, if the Parties need to seek the assistance of the Presiding Officer they intend to do so prior to December 15, 2023. The proposed extension of the briefing schedule is in line with the periods set forth in the Scheduling Order.

For the reasons set forth above, the Parties respectfully request that the Scheduling Order be modified as proposed above.

Dated: December 8, 2023

Respectfully Submitted,

HOLLAND & KNIGHT LLP

By: /s/Gerald A. Morrissey

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CERTIFICATE OF SERVICE

The undersigned hereby certifies that on the execution date which appears below, the undersigned served the attached document on counsel at the following email addresses:

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Executed: December 8, 2023

/s/ Kristine O. Little

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